

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
KEVIN MOORE,

Plaintiff,

- against -

THE CITY OF NEW YORK, POLICE OFFICER RYAN
MCCRAIN (Tax Reg. 966701), SERGEANT
RAYMOND PERSAUD (Tax Reg. 943675), and
JOHN DOES 1-10, fictitious names used to identify
presently unknown NYPD officers,Defendants.
-----X

Index No. _____/2023

Date Purchased:
March 14, 2023**SUMMONS**

Basis of venue is CPLR §504(3)

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance, on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
March 14, 2023

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007Police Officer Ryan McCrain (Tax #966701)
113th Precinct
167-02 Baisley Blvd.
Jamaica, New York 11434Sergeant Raymond Persaud (Tax # 943675)
113th Precinct
167-02 Baisley Blvd.
Jamaica, New York 11434

Yours, etc.,

HELD & HINES, LLP

/s/ Philip HinesPhilip M. Hines, Esq.
Attorneys for Plaintiff
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
KEVIN MOORE,

Index No. _____/2023

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, POLICE OFFICER RYAN
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Plaintiff, complaining of the defendants, by his attorneys, **HELD & HINES, LLP**, alleges,
upon information and belief, that:

1. Plaintiff is a resident of the State of New York, County of Queens.
2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK (hereinafter “the City”), was and remains a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, the New York City Police Department (hereinafter “NYPD”) was and remains a department and/or agency of the City.
4. At all times hereinafter mentioned, the NYPD’s 113th Precinct, located at 167-02 Baisley Blvd., Jamaica, New York, was and remains under the operation, direction, supervision and/or control of the City.
5. At all times hereinafter mentioned Defendants, POLICE OFFICER RYAN MCCRAIN, SERGEANT RAYMOND PERSAUD, and JOHN DOE POLICE OFFICERS 1-10

(collectively, the “defendant officers”), were members of service of the NYPD and employed by Defendant City.

6. At all times hereafter mentioned the defendant officers were acting in their course of employment and under the color of law.

7. On or about the January 20, 2022, at approximately 3:54 p.m., Plaintiff had lawfully exited a store located in the vicinity of 138-02 Farmers Blvd., Queens, New York, when he was approached by several police officers and/or supervisory officers of the City of New York and New York City Police Department, including but not limited to defendants Police Officer Ryan McCrain, Sgt. Raymond Persaud, and John Does 1-10, and subjected to an unlawful police stop.

8. The defendant officers then unlawfully detained and restrained Plaintiff against his will, without a warrant, and without reasonable suspicion or probable cause that he had committed a crime.

9. The defendant officers then used excessive physical force on Plaintiff and assaulted, battered, stunned, and Tasered Plaintiff without justification.

10. As a result of the foregoing excessive use of force, Plaintiff suffered heart failure, cardiac arrest and other bodily injuries, as well as psychological and emotional injuries and pecuniary loss.

11. The defendant officers then falsely arrested Plaintiff, falsely charged Plaintiff with crimes said officers knew Plaintiff had not committed, and then imprisoned and/or otherwise confined Plaintiff without probable cause.

12. The defendant officers each took overt acts in an effort to cover-up their aforesaid unlawful conduct, including but not limited to maliciously filing false criminal charges against

Plaintiff and submitting false official reports and/or sworn statements in an effort to advance false legal process and a criminal prosecution of Plaintiff.

13. Each of the defendants maliciously abused process against Plaintiff.

14. All of the foregoing conduct was under the color of law and without legal authority, probable cause, and/or reasonable suspicion.

15. The defendants, including but not limited to the defendant officers, individually and/or in concert or conspiracy with other officers and/or prosecutors, covered-up, filed false official documents, gave false sworn statements, reports and/or testimony regarding the aforesaid incidents, resulting in Plaintiff being falsely and unlawfully cited, detained, arrested and imprisoned by Defendants and violated by his parole officer, thereby depriving and violating Plaintiff's aforementioned due process and civil rights, liberties, privileges and immunities, and causing Plaintiff to sustain further physical, psychological and emotional injuries.

16. Defendants' conduct was wanton, malicious and sadistic, served no legitimate penological or judicial interest, and was without legal, reasonable or probable cause, all in violation of the plaintiff's rights.

17. Defendants' conduct was negligent, reckless, careless and/or intentional in the instance, including but not limited to their failures to properly hire, train, retain, supervise and control their police officers; their policy and practice of turning a blind eye to claims of brutality, corruption, cover-ups, and submissions of false statements, investigations and reports; their failure to faithfully investigate claims of retaliatory, abusive and/or unlawful tactics similar to those made herein and meaningfully punish offenders; and in being otherwise negligent, reckless, careless and/or purposeful in the instance, thereby causing the plaintiff to suffer the injuries and constitutional and statutory violations aforesaid.

18. The defendant officers lacked reasonable suspicion to detain the plaintiff.
19. The defendant officers lacked probable cause or a warrant to arrest the plaintiff.
20. By virtue of the foregoing, Defendants did falsely arrest and imprison the plaintiff.
21. As a result of the foregoing, the plaintiff suffered, and continues to suffer, serious personal injuries including, emotional and psychological trauma, pain and suffering, embarrassment, fear, and all other damages.

AS AND FOR A FIRST CAUSE OF ACTION
Claims for Violations of Rights Secured by the
United States Constitution, Pursuant to 42 U.S.C. 1983

22. Plaintiff repeats and re-alleges each and every allegation set forth in the prior paragraphs as if fully set forth herein.

23. As alleged herein, the defendant officers did deprive the plaintiff of his rights, privileges and immunities secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

24. As alleged herein, the defendant officers detained, arrested, and imprisoned the plaintiff without a warrant, reasonable suspicion, probable cause, or other lawful justification; deprived the plaintiff of liberty without due process of law; subjected the plaintiff to unlawful search and seizure; subjected the plaintiff to cruel and unusual punishment; subjected the plaintiff to unnecessary and wanton infliction of pain; did falsely detain, arrest, and imprison the plaintiff; and did maliciously prosecute the plaintiff.

25. The defendant officers' acts and omissions alleged herein violated Plaintiff's clearly established constitutional rights.

26. It was not objectively reasonable for the defendant officers to believe that their conduct did not violate Plaintiff's constitutional rights.

27. It was clearly established law on the date of Plaintiff's arrest that it was unlawful and a violation of an individual's constitutional rights for a government official to fabricate criminal charges against an individual, seize an individual absent legal justification, arrest and imprison an individual absent probable cause, and prosecute an individual in malice and/or without legal justification.

28. It was clearly established law on the date of the subject police encounter that it was unlawful and a violation of an individual's constitutional rights for a government official to use excessive physical force and to deny or delay medical treatment for an objectively serious medical condition. The defendant officers' striking, stunning, and Tasing of Plaintiff all constituted unreasonable and excessive uses of force that were violative of Plaintiff's clearly established constitutional rights.

29. The defendant officers' denial of timely medical attention to Plaintiff following these uses of force was wanton, malicious, and intended to cause further pain and anguish to Plaintiff. On the date of the subject incident, said conduct was violative of Plaintiff's clearly established constitutional rights.

30. It was clearly established law on the date of Plaintiff's arrest that it was unlawful and a violation of an individual's constitutional rights for a government official to initiate legal process and prosecute without probable cause.

31. It was clearly established law on the date of Plaintiff's arrest that it was unlawful and a violation of an individual's constitutional rights for a government official to falsify evidence and fabricate charging instruments.

32. None of the defendant officers intervened to prevent the aforesaid Constitutional violations prior to or while they were occurring.

33. None of the defendant officers intervened to provide Plaintiff with timely access to appropriate medical care.

34. Because the defendant officers were acting under color of state law and deliberately indifferent to and did violate the plaintiff's clearly-established constitutional rights, Plaintiff is entitled to recover damages pursuant to 42 U.S.C. § 1983 and an award of attorneys' fees and costs pursuant to 42 U.S.C. § 1988.

35. In addition to the foregoing relief, Plaintiff seeks punitive damages against the defendant officers individually.

STATE LAW CLAIMS FOR RELIEF

36. A notice of claim setting forth the time, place and manner in which the subject incident and injuries occurred was duly filed by the plaintiff with defendant City of New York within ninety (90) days of the occurrence; that at least thirty (30) days have elapsed since the service of such notice; that adjustment or payment thereof has been neglected or refused; and this action has been commenced within one year and ninety days after the cause of action accrued.

37. On or about April 15, 2022, the plaintiff caused to be filed with defendant City of New York a Notice of Claim setting forth the time, place, substance of claims, and description of injuries sustained by the plaintiff.

38. More than thirty (30) days have elapsed since the filing of the Notice of Claim with defendant City of New York and said defendant has neglected and/or refused to make an adjustment thereof, although same was duly demanded.

39. A hearing pursuant to §50-h of the General Municipal Law was held on or about October 12, 2022.

40. This action is commenced, including all applicable stays and tolls, within the

applicable statute of limitations.

41. This action falls within one or more exceptions set forth in N.Y. C.P.L.R. § 1602.

AS AND FOR A FIRST CAUSE OF ACTION

Battery

42. Plaintiff repeats and re-alleges each and every allegation set forth in the prior paragraphs as if fully set forth herein.

43. The defendant officers' unlawful acts aforesaid against the plaintiff constituted harmful and offensive contact to the plaintiff's person, all of which were done intentionally by said defendants and without the plaintiff's consent.

44. As a direct and proximate result of the aforementioned battery, the plaintiff has sustained in the past, and will continue to sustain in the future, physical injury pain and suffering, serious and severe psychological and emotional distress, mental anguish, embarrassment, and humiliation.

45. By reason of the foregoing, the plaintiff is entitled to an award of compensatory damages in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

46. By reason of the foregoing, the plaintiff is entitled to an award of punitive damages in an amount the jury would find fair, just and appropriate to deter said defendants and others from future similar conduct, while considering the depraved, malicious, fraudulent, and oppressive intent to injure the plaintiff, in conscious disregard for his rights and safety.

AS AND FOR A SECOND CAUSE OF ACTION

Assault

47. Plaintiff repeats and re-alleges each and every allegation set forth in the prior

paragraphs as if fully set forth herein.

48. The defendant officers' unlawful acts against the plaintiff created a reasonable apprehension in the plaintiff of immediate harmful or offensive contact to his person, all of which were done intentionally by the defendant officers and without the plaintiff's consent.

49. As a direct and proximate result of the aforementioned assault, the plaintiff has sustained in the past, and will continue to sustain in the future, physical injury pain and suffering, serious and severe psychological and emotional distress, mental anguish, embarrassment, and humiliation.

50. By reason of the foregoing, the plaintiff is entitled to an award of compensatory damages in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

51. By reason of the foregoing, the plaintiff is entitled to an award of punitive damages in an amount the jury would find fair, just and appropriate to deter said defendant and others from future similar conduct, while considering the depraved, malicious, fraudulent, and oppressive intent to injure the plaintiff, in conscious disregard for his rights and safety.

AS AND FOR A THIRD CAUSE OF ACTION
False Arrest, False Imprisonment, and Malicious Prosecution

52. Plaintiff repeats and re-alleges each and every allegation set forth in the prior paragraphs as if fully set forth herein.

53. As alleged throughout the Complaint, the defendants unlawfully detained the plaintiff without reasonable suspicion; unlawfully arrested the plaintiff without probable cause or warrant; unlawfully imprisoned the plaintiff; and maliciously prosecuted the plaintiff.

54. The defendants' aforesaid acts were not reasonable under the circumstances.

55. The defendants' aforesaid acts were not justified, privileged, or warranted under the circumstances and constituted false detention, false arrest, false imprisonment, and unreasonable and unnecessary force.

56. As alleged herein, through bad faith, fraud and perjury, the defendant officers arrested, imprisoned, and maliciously prosecuted Plaintiff.

57. As a direct and proximate result of the aforementioned, the plaintiff has sustained in the past, and will continue to sustain in the future, physical injury pain and suffering, serious and severe psychological and emotional distress, mental anguish, embarrassment, humiliation, and loss of freedom.

58. By reason of the foregoing, the plaintiff is entitled to an award of compensatory damages in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

59. By reason of the foregoing, the plaintiff is entitled to an award of punitive damages in an amount the jury would find fair, just and appropriate to deter said defendant and others from future similar conduct, while considering the depraved, malicious, fraudulent, and oppressive intent to injure the plaintiff, in conscious disregard for his rights and safety.

AS AND FOR A FOURTH CAUSE OF ACTION

Negligence

60. Plaintiff repeats and re-alleges each and every allegation set forth in the prior paragraphs as if fully set forth herein.

61. The defendants were negligent in the instance in that they did not have lawful cause, justification, or authority to detain, arrest, or imprison the plaintiff.

62. The negligent and wrongful acts and omissions by defendants included, but was not

limited to, their failures to act in the instances aforesaid as a reasonably prudent officer would in the same or similar circumstances; in that they engaged in conduct that unreasonably jeopardized the freedom, property, and life of the plaintiff; in that they failed to reasonably inquire and/or investigate a complaint made against the plaintiff prior to detaining, arresting, and imprisoning him; in that they failed to take reasonable actions and precautions in the instance; in that they failed to obtain the necessary information and relied upon incomplete and/or inaccurate information in detaining and arresting the plaintiff; and acted without caution or care for the safety and rights of the plaintiff and/or the outcome of their actions.

63. The defendants were grossly negligent, negligent, careless, reckless, inattentive, and/or otherwise proceeded in an unreasonably hazardous manner without caution or care for the safety and civil rights of the plaintiff; failed to obey their own protocols, rules, standards, directives, and training materials governing the aforesaid incident; failed to take reasonable precautions to maintain and preserve the rights and safety of the plaintiff in the instance; and in being otherwise negligent, reckless and careless in the instances aforesaid.

64. Defendants negligently discharged their duties and thereby caused the plaintiff to sustain the aforementioned injuries and deprivations.

65. Defendant City of New York was negligent, careless, and reckless in the hiring, screening, training, retention, and supervision of the involved officers in that said employees lacked the character, mental capacity, experience, ability, maturity, sensibility and/or intelligence to be and remain employed by the City of New York; in failing to exercise due care and caution in its hiring, screening, training, retention, and supervision practices; in failing to suspend and/or terminate employees when such action was either proper or required; and its failure to enforce the laws of the United States of America, the State of New York, and the Charter, rules and regulations

of the City of New York is evidence of the reckless lack of cautious regard for the rights of the public in general and the plaintiff in particular and exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

66. Defendant City of New York knew or should have known in the exercise of reasonable care the propensities of its involved employees to engage in the wrongful conduct alleged herein.

67. The unlawful detention, arrest, and confinement of the plaintiff set forth above was the reasonably foreseeable consequence of defendant City of New York's negligent conduct.

68. Due to the negligence of the defendants, the plaintiff suffered serious harm and was injured.

69. As a direct and proximate result of the aforementioned assault, the plaintiff has sustained in the past, and will continue to sustain in the future, physical injury pain and suffering, serious and severe psychological and emotional distress, mental anguish, embarrassment, and humiliation.

70. By reason of the foregoing, the plaintiff is entitled to an award of compensatory damages in an amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

71. By reason of the foregoing, the plaintiff is entitled to an award of punitive damages in an amount the jury would find fair, just and appropriate to deter said defendant and others from future similar conduct, while considering the depraved, malicious, fraudulent, and oppressive intent to injure the plaintiff, in conscious disregard for his rights and safety.

AS AND FOR A FIFTH CAUSE OF ACTION
Negligent and Intentional Infliction of Emotional Distress

72. Plaintiff repeats and re-alleges each and every allegation set forth in the prior paragraphs as if fully set forth herein.

73. As set forth above, the defendants' aforesaid acts and omissions were intentional, malicious, and excessive, and served no reasonable or legitimate penological interest.

74. As set forth above, the defendants' aforesaid acts and omissions were negligent and served no reasonable or legitimate penological interest.

75. Due to the aforesaid acts of the defendants, the plaintiff suffered extreme emotional distress.

76. The intentional, reckless and/or negligent acts of the defendants constituted misconduct of an egregious and outrageous nature that exceeds all bounds usually tolerated by society.

77. As a direct and proximate result of the foregoing, the plaintiff suffered severe psychological and emotional trauma in an amount to be determined at trial.

AS AND FOR A SIXTH CAUSE OF ACTION
Respondeat Superior

78. Plaintiff repeats and re-alleges each and every allegation set forth in the prior paragraphs as if fully set forth herein.

79. At all times pertinent hereto, the defendant officers were acting within the scope of their employment as officers of the New York City Police Department.

80. As the employer of the defendant officers and their supervisory personnel, defendant City of New York is liable under the doctrine of *respondeat superior* for the intentional

and negligent torts of these employees, which were committed within the scope of their employment.

81. As a direct and proximate result of the foregoing, the plaintiff was injured and damaged in an amount to be determined at trial.

AS AND FOR A SEVENTH CAUSE OF ACTION
Punitive Damages

82. Plaintiff repeats and re-alleges each and every allegation set forth in the prior paragraphs as if fully set forth herein.

83. The acts and omissions of the defendant officers were willful, wanton, malicious, and oppressive and were motivated by a desire to discharge their purported duties without regard for the freedom, life, well-being, property, and constitutional rights of the plaintiff and were based on a lack of concern for same. Such acts warrant an award of punitive damages.

WHEREFORE Plaintiff seeks an award of (a) compensatory damages in an amount to be determined at trial, but in any event in an amount that exceeds the jurisdictional limits of all lower courts, against all defendants; (b) punitive damages against each defendant officer in an amount to be determined at trial; (c) attorneys' fees, costs and disbursements pursuant to law; and (d) such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York
March 14, 2023

Yours, etc.,

HELD & HINES, LLP

/s/ Philip Hines

Philip M. Hines, Esq.
Attorney for Plaintiff

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Brooklyn, New York 11234
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ATTORNEY VERIFICATION

PHILIP HINES, an attorney duly licensed to practice in the courts of the State of New York, hereby affirms the following under penalties of perjury:

That I am a member of the law firm of HELD & HINES, L.L.P., attorneys for the plaintiffs in the within action; that I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; and that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe them to be true. The reason this Verification is made by me and not by the plaintiff is that the plaintiff resides outside of the County in which your Affirmant's office is located.

The grounds of my belief as to all matters stated upon my own knowledge are as follows: the records and reports contained in the plaintiff's file.

/s/ Philip Hines

Philip M. Hines, Esq.

Affirmed to March 14, 2023

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COUNTY OF QUEENS

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SUMMONS AND VERIFIED COMPLAINT

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Signature (Rule 130-1.1-a)

/s/ Philip Hines

Philip M. Hines, Esq.